

Specific Relief Act, 1963

Authority: Ministry of Law and Justice, Government of India

Year: 1963

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Section 10. Specific performance in respect of contracts

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The specific performance of a contract shall be enforced by the court subject to the provisions contained in sub-section (2) of section 11, section 14 and section 16. The court must grant specific performance where monetary compensation is not an adequate remedy.

Section 38. Perpetual injunction when granted

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(1) Subject to the other provisions contained in or referred to by this Chapter, a perpetual injunction may be granted to the plaintiff to prevent the breach of an obligation existing in his favour, whether expressly or by implication.

(3) When the defendant invades or threatens to invade the plaintiff's right to, or enjoyment of, property, the court may grant a perpetual injunction where the defendant is a trustee, where there exists no standard for ascertaining actual damage, where invasion is such that monetary compensation would not afford adequate relief, or where the injunction is necessary to prevent a multiplicity of judicial proceedings.